

No. _____

In the Supreme Court of the United States

NETCHOICE,

Applicant,

v.

LYNN FITCH, IN HER OFFICIAL CAPACITY AS ATTORNEY GENERAL OF MISSISSIPPI,

Respondent.

On Application to the Honorable Samuel A. Alito, Jr.,
Associate Justice of the Supreme Court of the United States and
Circuit Justice for the Fifth Circuit

**EMERGENCY APPLICATION OF NETCHOICE FOR
IMMEDIATE TEMPORARY ADMINISTRATIVE RELIEF AND
VACATUR OF FIFTH CIRCUIT'S STAY OF PRELIMINARY INJUNCTION**

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**IDENTITY OF PARTIES, CORPORATE DISCLOSURE STATEMENT, AND
RELATED PROCEEDINGS**

Applicant is NetChoice. Pursuant to Rule 29.6, Applicant states that it is a District of Columbia nonprofit trade association for internet companies. NetChoice's mission is to promote online commerce and speech and to increase consumer access and options via the internet, while also minimizing the burdens that would prevent businesses from making the internet more accessible and useful. NetChoice has no parent corporation, and no publicly held company has 10% or greater ownership in this entity.

Respondent is Lynn Fitch, in her official capacity as Attorney General of Mississippi.

The related proceedings are:

NetChoice, LLC v. Fitch, No. 1:24-cv-00170-HSO-BWR (S.D. Miss. July 1, 2024)
(order granting preliminary injunction based on facial challenge)

NetChoice, LLC v. Fitch, No. 1:24-cv-00170-HSO-BWR (S.D. Miss. June 18, 2025)
(order granting preliminary injunction based on as-applied challenge)

NetChoice, L.L.C. v. Fitch, No. 24-60341 (5th Cir. Apr. 17, 2025) (order vacating preliminary injunction of facial challenge)

NetChoice, L.L.C. v. Fitch, No. 25-60348 (5th Cir. July 17, 2025) (order staying preliminary injunction pending appeal)

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**TO THE HONORABLE SAMUEL A. ALITO, JR.,
ASSOCIATE JUSTICE OF THE SUPREME COURT OF THE UNITED STATES
AND CIRCUIT JUSTICE FOR THE FIFTH CIRCUIT:**

NetChoice respectfully requests emergency relief to maintain the status quo, in which both minors and adults can access and engage in fully protected expression online, free from governmental interference. NetChoice requests (1) temporary administrative relief, vacating the Fifth Circuit’s stay while the Court considers this Application; and then (2) an order vacating the Fifth Circuit’s stay of the district court’s preliminary injunction of a Mississippi law creating content-based barriers to accessing fully protected speech online, thus leaving the district court’s injunction in force pending this Court’s eventual disposition of any petition for writ of certiorari from this Fifth Circuit appeal. Respondent will *not* agree to voluntarily stay enforcement of this law while the Application is pending.

INTRODUCTION

In a one-sentence order, the Fifth Circuit upended the First Amendment rights of Mississippi citizens seeking to access fully protected speech across social media websites. The content-based Mississippi House Bill 1126 (2024) (“Act”) imposes age-verification and parental-consent requirements on adults and minors wishing to engage with protected expression on social media websites—distinct from what the Act calls “news,” “sports,” and “online video game” websites. On top of that, the Act imposes monitoring-and-censorship requirements over the protected speech accessible by minors on those websites—placing the State as overseer of websites’ content-moderation policies. The Act backs up these restrictions with \$10,000 civil penalties per violation and even *criminal* penalties. In a careful decision, the district court

preliminarily enjoined Respondent Mississippi Attorney General from enforcing those restrictions against nine specific NetChoice-member websites. That decision faithfully applied this Court’s precedents, and it matched decisions reached by seven other courts that have enjoined enforcement of similar state laws restricting access to protected speech on social media websites. These websites are, for some, the “principal sources for . . . exploring the vast realms of human thought and knowledge.” *Packingham v. North Carolina*, 582 U.S. 98, 107 (2017). And they disseminate a “staggering amount” of fully protected speech, across “billions of posts or videos.” *Moody v. NetChoice, LLC*, 603 U.S. 707, 719, 734 (2024). Whatever authority States may have to restrict access to speech *unprotected* for minors, States may not dictate what fully protected speech is appropriate for minors. Yet this Mississippi Act does just that in four ways prohibited by the First Amendment.

First, the Act’s parental-consent requirements for minors to create social media accounts, § 4(2),¹ violates this Court’s instruction that minors “are entitled to a significant measure of First Amendment protection” and that States lack “power to prevent children from hearing or saying anything *without their parents’ prior consent*.” *Brown v. Ent. Merchs. Ass’n*, 564 U.S. 786, 794, 795 n.3 (2011) (citation omitted).

Second, the Act’s age-verification requirement for adults and minors to create accounts on social media websites, § 4(1), violates this Court’s recognition that government-mandated “age verification necessarily” “burden[s]” First Amendment rights to access protected speech and, in the context of a content-based law restricting

¹ All similar citations refer to Mississippi House Bill 1126. *See* App.102a-14a.

access to “fully protected speech,” triggers strict scrutiny. *Free Speech Coal., Inc. v. Paxton*, 2025 WL 1773625, at *12, *16 (U.S. June 27, 2025) (“FSC”).

Third, the Act’s monitoring-and-censorship requirements for vague categories of protected speech, § 6, violate precedent holding that “government has no power to restrict expression because of its message, its ideas, its subject matter, or its content.” *Brown*, 564 U.S. at 790-91 (citation omitted). The State cannot replace websites’ voluntary “content moderation”—choices about whether and how to disseminate speech—with a mandate to censor based on protected speech’s content or viewpoint.

Fourth, the Act’s coverage definition selects websites for regulation based on the content of speech they disseminate, triggering strict scrutiny, which the Act’s speech restrictions cannot satisfy. *See Reed v. Town of Gilbert*, 576 U.S. 155, 163 (2015).

This precedent amply supports why the district court concluded the Act is likely unconstitutional as applied to NetChoice members’ nine covered websites and preliminarily enjoined Respondent’s enforcement of this Act. But the Fifth Circuit stayed the district court’s preliminary injunction in a one-sentence, unreasoned order. Neither NetChoice nor this Court can know why the Fifth Circuit believed this law satisfies the First Amendment’s stringent demands or deviated from the seven other decisions enjoining similar laws. *E.g.*, *NetChoice v. Carr*, 2025 WL 1768621 (N.D. Ga. June 26, 2025); *Comput. & Commc’ns Indus. Ass’n v. Uthmeier*, 2025 WL 1570007 (N.D. Fla. June 3, 2025); *NetChoice, LLC v. Yost*, 2025 WL 1137485 (S.D. Ohio Apr. 16, 2025); *NetChoice, LLC v. Griffin*, 2025 WL 978607 (W.D. Ark. Mar. 31, 2025); *NetChoice, LLC v. Bonta*, 2025 WL 807961 (N.D. Cal. Mar. 13, 2025); *Comput. & Commc’ns Indus. Ass’n v. Paxton*, 747 F. Supp. 3d 1011 (W.D. Tex. 2024); *NetChoice*,

LLC v. Reyes, 748 F. Supp. 3d 1105 (D. Utah 2024).

The Fifth Circuit’s stay order threatens immediate, irreparable injury. To avoid liability, NetChoice’s regulated members would have to implement the Act’s restrictions, burdening all Mississippians’ access to “billions” of “posts” containing fully protected speech. *Moody*, 603 U.S. at 719, 734. And the Act will prevent access to that expression for some users entirely—including those unwilling or unable to verify their age and minors who cannot secure parental consent. In addition to the immediate loss of First Amendment rights, the websites also face irreparable harm from enormous, “nonrecoverable” compliance costs. *Ohio v. EPA*, 603 U.S. 279, 292 (2024) (cleaned up). For some NetChoice members, the Act’s compliance costs are “far in excess of [their] available budget.” App.227a.

This is the second time in recent years that the Fifth Circuit has, without explanation, stayed an injunction of a state social media law. *See NetChoice, LLC v. Paxton*, 142 S. Ct. 1715, 1715-16 (2022). The Fifth Circuit’s unexplained stay order deprives NetChoice, its members, and their users of the “careful review and a meaningful decision” to which they are “entitle[d].” *Nken v. Holder*, 556 U.S. 418, 427 (2009).

So as the Court did in *NetChoice, LLC v. Paxton*, it should grant this Application to prevent an unwarranted *unreasoned* stay of the *reasoned* preliminary injunction decision here. That would preserve the status quo that prevailed before Mississippi attempted to fundamentally alter how its citizens can access fully protected online speech and allow an orderly appellate process to proceed. *Dayton Bd. of Educ. v. Brinkman*, 439 U.S. 1358, 1359 (1978) (Rehnquist, J., in chambers) (“maintenance of the status quo is an important consideration”).

OPINION BELOW

The district court’s order is available at 2025 WL 1709668 and reproduced at App.4a-38a. The Fifth Circuit’s stay order is unreported and reproduced at App.2a.

JURISDICTION

This Court has jurisdiction under 28 U.S.C. §§ 1254(1), 1651, and 2101(f), and Supreme Court Rule 23.

CONSTITUTIONAL AND STATUTORY PROVISIONS

Pertinent constitutional and statutory provisions are reprinted at App.100a-14a.

STATEMENT

A. Factual background

Regulated actors and their fully protected speech. Applicant NetChoice is an internet trade association. The Act’s regulatory scope covers nine websites operated by NetChoice members: (1) Dreamwidth; (2) Facebook; (3) Instagram; (4) Nextdoor; (5) Pinterest; (6) Reddit, (7) Snapchat; (8) X; and (9) YouTube. *See* App.5a.

These are the kinds of “social media” websites that people have a right to “access” because they serve as vital places where users can access and interact with vast amounts of protected expression. *See Packingham*, 582 U.S. at 108. They “allow users to upload content . . . to share [it] with others.” *Moody*, 603 U.S. at 719. Consequently, they disseminate “billions of posts or videos,” providing users an important means of sharing a “staggering” amount of their own protected expression. *Id.* at 719, 734. Similarly, these websites “engage[] in expression” by “display[ing],” “compil[ing,] and curat[ing]” protected speech. *Id.* at 716-17, 728; App.232a-34a.

Teens and adults use these websites to engage in a broad range of fully protected

speech. *E.g.*, App.232a-34a. Dreamwidth allows users to share their creative writing and artwork. App.207a. “On Facebook, . . . users can debate religion and politics with their friends and neighbors or share vacation photos.” *Packingham*, 582 U.S. at 104. Instagram allows people to post and view photos and videos, learn about and advocate for the causes they care about, showcase their art or athletic talent, and hear from their local government officials. On Nextdoor, users can connect with neighbors and share local news. App.193a. Pinterest allows users to explore recipes, home decor, and more. On Reddit, users may access hundreds of thousands of user-created and led communities on all subjects. Snapchat allows users to have digital conversations with friends and family in ways that replicate real-life interactions. On X, “users can petition their elected representatives and otherwise engage with them in a direct manner.” *Packingham*, 582 U.S. at 104-05. And YouTube endeavors to show people the world, from travel documentaries to cooking instructions. App.167a.

Parental options to oversee minor children online. “[P]arents may rightly decide to regulate their child’s use of social media—including restricting the amount of time they spend on it, the content they may access, or even those they chat with. And many tools exist to help parents with this endeavor.” *Griffin*, 2025 WL 978607, at *3.

The district court found that many such tools are available to parents to control what content their children see, and for how long. App.27a. To start, parents can control minors’ access to *devices*. App.234a. Devices come with parental-control options, including the ability to lock or limit specific apps and websites, limit content, and set overall or time-of-day usage limits. *Id.* Parents can also control the *networks* that minors use. Wireless routers allow parents to manage which network a minor

connects to and to set up rules defining which websites minors can use (and when). App.234a-35a. Many internet service providers offer similar controls. *Id.* Parents can also control *software*. Web browsers offer parental controls. App.235a-36a. And third-party parental control software is available for many devices. App.236a-37a.

In addition, many members have developed their own suite of parental controls and other protections for minors on their services, further enabling parents to make their own decisions about what type of online access is most appropriate for their family. *E.g.*, App.170a-77a; App.237a.

Members' voluntary efforts to address harmful and objectionable speech. NetChoice members also address potentially harmful speech through “content moderation” to enhance the value of the content that their users access on their websites. Specifically, members have put in place important mechanisms to address and—as appropriate—remove nudity and sexual content, self-harm, substance abuse, harassment and bullying, and child exploitation. App.176a-77a; App.195a-97a; App.214a-17a, 218a-19a, 222a-24a; App.238a-47a. In fact, members’ efforts address all manner of speech they consider harmful and left unregulated by the Act, including hate speech. *E.g.*, App.247a-48a. Members’ efforts are effective, especially considering the inherent difficulties of content moderation at the scale of many members’ websites. App.248a-50a; *see Moody*, 603 U.S. at 738-39 (noting scale of removed content). Restricting and removing such objectionable content is no small task. It is an iterative process, requiring websites often to consider context, intent, and other factors when determining whether content violates websites’ policies. App.250a.

B. Mississippi House Bill 1126 (2024)

The Act's scope. The Act here has a “targeted scope,” limited to “social media,” as Respondent acknowledges. App.264a, 268a. The Act regulates a content-based collection of “digital services” that “allow[] users to socially interact with other users.” § 3(1). In other words, it regulates precisely the kinds of “social media” websites this Court has held people have a right to access because of the vast amounts of protected speech available on the websites. *Packingham*, 582 U.S. at 108.

Specifically, the Act applies to any entity that (1) “[o]wns or operates a digital service” and (2) “[d]etermines” both the “purpose” and “means” of “collecting and processing [users’] personal identifying information.” § 2(a)-(b). A “digital service” is “a website, an application, a program, or software that collects or processes personal identifying information.” § 2(a). But the Act only regulates “digital services” that:

- (a) Connect[] users in a manner that allows users to socially interact with other users on the digital service;
- (b) Allow[] a user to create a public, semi-public or private profile for purposes of signing into and using the digital service; and
- (c) Allow[] a user to create or post content that can be viewed by other users of the digital service, including sharing content on: (i) A message board; (ii) A chat room; or (iii) A landing page, video channel or main feed that presents to a user content created and posted by other users.

§ 3(1). The Act also excludes websites based on their content—those that “primarily function[] to provide a user with access to”:

- (c)(i) . . . news, sports, commerce, online video games or content primarily generated or selected by the [website]; and (ii) Allows chat, comment or other interactive functionality that is incidental to the digital service; or
- (d) . . . career development opportunities, including: . . . (i) Professional networking.

§ 3(2). In other words, the Act expressly regulates only those services that are traditionally understood as “social media.”²

The Act regulates covered social media websites by burdening and restricting access to speech in three ways most relevant here.

Age verification. § 4(1). Covered websites “shall make commercially reasonable efforts to *verify* the age of the person creating an account with a level of certainty appropriate to the risks that arise from the information management practices of the” website. § 4(1) (emphasis added). This requirement to *verify* ages is separate from the Act’s requirement that users “*register*” their ages. *See id.* (emphasis added). So the age-verification required by the Act entails something more than asking for self-declared age. Because users create accounts on members’ websites to speak and access some or all of the content on the services, this provision will require users to verify their ages before engaging in or viewing expression they are constitutionally entitled to view free from governmental restraint. App.194a; App.208a-09a; App.251a.

Parental consent. § 4(2). Covered websites “shall not permit an account holder who is a known minor to be an account holder unless the known minor has the express consent from a parent or guardian.” § 4(2). A “known minor” is any unemancipated minor the website “knows to be a minor.” § 2(d). The Act enumerates five “acceptable methods of obtaining express consent,” plus a sixth catch-all. § 4(2). Members’ covered services do not currently require parents to affirmatively provide their consent before

² Accordingly, this *as-applied* challenge is unlike *Moody* for the additional reason that it is clear “what [] the laws have to say” about other “kinds of” services “beyond [] social-media.” 603 U.S. at 718, 725. This Act does not cover them.

allowing teenagers on the services regulated here. *E.g.*, App.186a. So this provision will force teenagers to obtain parental consent to engage in and interact with protected expression—even though the First Amendment protects their ability to speak and be spoken to without parental consent. *See Brown*, 564 U.S. 795 n.3.

Monitoring and censorship. § 6. Covered websites “shall make commercially reasonable efforts to develop *and implement* a strategy to prevent or mitigate [] known minor[s]’ *exposure to* harmful material and other *content* that promotes or facilitates the following harms to minors”:

- (a) Consistent with evidence-informed medical information, the following: self-harm, eating disorders, substance use disorders, and suicidal behaviors;
- (b) Patterns of use that indicate or encourage substance abuse or use of illegal drugs;
- (c) Stalking, physical violence, online bullying, or harassment;
- (d) Grooming, trafficking, child pornography, or other sexual exploitation or abuse;
- (e) Incitement of violence; or
- (f) Any other illegal activity.

§ 6(1) (emphases added). “[H]armful material” corresponds to Mississippi’s legal definition of obscenity for minors. § 2(c) (incorporating Miss. Code § 11-77-3(d)).

Based on its plain text, these provisions necessarily require covered websites to monitor for and censor speech accessible to minors. The only way to “prevent” minors’ “exposure to” content is by not disseminating it to minors—that is, censoring that content on minors’ accounts. § 6(1). And the only way to censor such content on members’ websites (and other covered websites) is to monitor for that content.

Confirming this interpretation, the Act specifies that the monitoring-and-censorship requirements will not preclude: “(a) Any minor from deliberately and independently searching for, or specifically requesting, content; or (b) . . . [a covered website] providing resources for the prevention or mitigation of the harms described [above], including evidence-informed information and clinical resources.” § 6(2).³

Enforcement and penalties. The Act designates violations as “unfair or deceptive trade practices.” § 8. Respondent may seek injunctive relief, civil monetary penalties up to \$10,000 per violation, and even *criminal* penalties under Mississippi’s deceptive trade practices statute. *See* Miss. Code §§ 75-24-9, -19 to -20.

C. Procedural history

Facial challenge. The Mississippi Governor signed the Act into law on April 30, 2024, with a July 1, 2024, effective date. NetChoice sued and moved for a preliminary injunction. In a detailed decision issued the same day that this Court decided *Moody*, the district court held that the law was likely *facially* unconstitutional. App.59a-98a.

On appeal, the Fifth Circuit vacated that injunction without addressing the First Amendment merits. Notably, the Fifth Circuit did not grant Respondent’s motion to stay the first preliminary injunction. App.56a. Instead, the Fifth Circuit concluded in a full opinion that, because the district court ruled on NetChoice’s “facial challenge” the same day that “*Moody* . . . reframed the analysis for facial challenges,” it “understandably did not conduct [*Moody*’s] analysis” for facial challenges. *NetChoice, L.L.C. v. Fitch*, 134 F.4th 799, 809 (2025). The Fifth Circuit thus remanded for the district

³ The Act also regulates data-use and -collection. § 5.

court to “resolve” a “factual inquiry” pertinent to the *facial* challenge—which was the only pending challenge. *Id.*

As-applied challenges. On remand, NetChoice did two things. First, it amended its complaint to *add as-applied* claims for the nine NetChoice-member covered websites, heeding this Court’s suggestion to bring an “as-applied challenge” entailing a different analysis. *Moody*, 603 U.S. at 718. Second, NetChoice complied with the Fifth Circuit’s request to provide more information about “whether the Act applies to [other websites].” *Fitch*, 134 F.4th at 808; *e.g.*, App.252a-53a.

After briefing, the district court again issued a detailed opinion, concluding the Act is “unconstitutional *as applied* to certain of Plaintiff NetChoice, LLC’s members.” App.4a (emphasis added); *see* App.4a-38a. It reasoned that because “it need not reach the facial challenge in order to fully protect the litigants, . . . it will refrain from doing so in order to avoid ‘unnecessary adjudication of constitutional issues.’” App.36a (quoting *United States v. Nat’l Treasury Emps. Union*, 513 U.S. 454, 478 (1995)). As a result, it enjoined Respondent’s enforcement of the Act against the nine covered websites operated by NetChoice members, identified above at p.5.

On July 2, 2025, Respondent asked the Fifth Circuit to stay the preliminary injunction, and on July 14, 2025, NetChoice opposed Respondent’s motion. Three days later—and less than one hour after Respondent filed a reply brief—a Fifth Circuit motions panel granted a stay in a one-sentence order. App.2a.

REASONS FOR GRANTING THE APPLICATION

This Court should vacate the Fifth Circuit’s order staying the district court’s preliminary injunction. That would allow NetChoice members to continue disseminating

speech to users free from unconstitutional restraints, preserving the status quo for how Mississippi residents access the “billions of posts” of fully protected speech available on the nine websites covered by the district court’s injunction. *Moody*, 603 U.S. at 734. NetChoice satisfies all necessary requirements: (1) NetChoice “is likely to succeed on the merits”; (2) NetChoice’s members and their users “will suffer irreparable injury without a stay”; (3) vacatur will not “substantially injure” Respondent; and (4) “the public interest lies” in protecting the First Amendment rights of NetChoice covered members and their many users. *Ohio*, 603 U.S. at 291.

I. This Court should vacate the Fifth Circuit’s unreasoned stay order to preserve orderly appellate review of important First Amendment issues.

This Application can be granted for the sole reason that the Fifth Circuit’s one-sentence order is unexplained. *See Nken*, 556 U.S. at 427. Just as this Court vacated the Fifth Circuit’s unreasoned stay of the preliminary injunction in *NetChoice, LLC v. Paxton*, it should do so here to allow for an orderly appellate process. 142 S. Ct. at 1715-16.

As *Nken* explained, appellate courts may not enter stays pending appeal “reflexively,” but only after the movant has satisfied its “heavy burden,” and only after the panel has conducted “careful review” and issued a “meaningful decision.” 556 U.S. at 427; *see id.* at 439 (Kennedy, J., concurring). Yet, in stark contrast to the two extensively reasoned district court opinions in this case, the Fifth Circuit’s order (entered less than an hour after Respondent submitted a reply brief) explains nothing. This is particularly troubling in the context of a decision with sudden and sweeping implications for accessing fully protected speech.

Furthermore, the Fifth Circuit’s unreasoned stay order disrupts what had been an orderly consideration of challenges to numerous similar laws enacted by other States. Several lower courts have enjoined laws restricting online speech, with virtually identical parental-consent, age-verification, and monitoring-and-censorship restrictions imposed on social media websites. Seven decisions awarding injunctions are currently on appeal.⁴ But until now, not one of the appellate courts *stayed the injunction*. For instance, the Texas Attorney General appealed a preliminary injunction of a substantially similar monitoring-and-censorship requirement and did *not* seek a stay of the preliminary injunction pending appeal in the Fifth Circuit. *Comp. & Commc’ns Indus. Ass’n v. Paxton*, No. 24-50721 (5th Cir.).⁵

In total, litigation over these laws has allowed parties to fully brief the legal issues and has given courts time to consider all the issues as part of an orderly review process *before* these laws go into effect and disrupt the normal course of how Americans access protected speech online. The result of that orderly process has been a series of thorough opinions, in which the lower courts have recognized the grave First Amendment problems with laws like this Act. The district court here was no different, issuing *two* such decisions during this case. Here, however, the Fifth Circuit has sent

⁴ *E.g.*, *NetChoice LLC v. Att’y Gen., State of Ga.*, No. 24-12273 (11th Cir.); *Comp. & Commc’ns Indus. Ass’n v. Att’y Gen., State of Fla.*, No. 25-11881 (11th Cir.); *NetChoice, LLC v. Yost*, No. 25-03371 (6th Cir.); *NetChoice, LLC v. Griffin*, No. 25-01889 (8th Cir.); *NetChoice, LLC v. Bonta*, No. 25-00146 (9th Cir.); *NetChoice v. Brown*, No. 24-04100 (10th Cir.).

⁵ Other cases are proceeding to the merits in the district court, often with injunctions or non-enforcement agreements in place. *E.g.*, *NetChoice v. Murrill*, No. 3:25-cv-00231-JWD-RLB (M.D. La.).

the orderly appellate process into chaos by issuing a one-sentence order allowing the Mississippi Attorney General to enforce the Act immediately. App.2a.

This Court should therefore vacate the Fifth Circuit’s stay order to restore the orderly appellate process. The Act violates multiple First Amendment doctrines, and NetChoice meets all the traditional vacatur factors. But vacatur is warranted here even apart from those factors. Mississippi should not be allowed to transform the internet before even one judge has explained why Mississippi’s effort to stifle users’ access to protected expression complies with the First Amendment and why the judicial consensus is wrong.

II. The Court is likely to grant certiorari review if the Fifth Circuit ultimately upholds the Mississippi Act’s content-based restrictions on accessing and disseminating fully protected speech on social media websites.

This Court is likely to review any decision upholding this Act’s content-based restrictions on accessing the staggering amount of fully protected speech available on the social media websites covered by the district court’s injunction. So there is “a reasonable probability that four Justices will consider the issue sufficiently meritorious to grant certiorari.” *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam).

This Court routinely grants review of lower courts’ important First Amendment rulings, even in the absence of square circuit splits. *E.g.*, *Harris v. Quinn*, 573 U.S. 616, 627 (2014) (granting certiorari not to resolve a split, but rather “[i]n light of the important First Amendment questions these laws raise”); *Snyder v. Phelps*, 562 U.S. 443, 451 (2011); *United States v. Stevens*, 559 U.S. 460, 468 (2010); Pet. For Writ of Certiorari, *Brown v. Ent. Merchs. Ass’n*, 2009 WL 1430036, at *5 (U.S. May 19, 2009)

(noting “lack of a split among the circuit courts”). The Fifth Circuit’s apparent approval of restrictions on minors’ and adults’ access to massive amounts of fully protected online speech—and governmental requirements to censor speech—raises sufficiently important First Amendment questions. That is especially true in light of the multiple nearly identical state laws raising the same questions.

As explained throughout this Application, the Fifth Circuit “has decided an important federal question in a way that conflicts with relevant decisions of this Court.” Sup. Ct. R. 10(c). For age verification, the Act conflicts with this Court’s holding that “submitting to age verification is a burden on the exercise of” the “right to access speech” protected by the First Amendment. *FSC*, 2025 WL 1773625, at *11. Unlike *FSC*, this content-based Act requires age-verification to access “a staggering amount” of fully protected speech. *Moody*, 603 U.S. at 719. And the Fifth Circuit’s decision runs contrary to this Court’s observation that the States cannot suppress “[s]peech that is neither obscene as to youths nor subject to some other legitimate proscription . . . solely to protect the young from ideas or images that a legislative body thinks unsuitable for them.” *Erznoznik v. Jacksonville*, 422 U.S. 205, 213-14 (1975).

For parental consent, Mississippi has flouted this Court’s observation in *Brown* that minors “are entitled to a significant measure of First Amendment protection,” and States lack the “power to prevent children from hearing or saying anything *without their parents’ prior consent*.” *Brown*, 564 U.S. at 794-95 & n.3 (citation omitted).

The monitoring-and-censorship requirements violate the bedrock rule that governments cannot penalize the dissemination of categories of protected speech that contain state-disfavored content or viewpoints—repeated in more cases than can be

cited. *E.g., id.* at 799 (“It is rare that a regulation restricting speech because of its content will ever be permissible.” (citation omitted)). In addition, forcing covered websites to engage in the state-preferred version of monitoring content on their services violates this Court’s holding that governments cannot restrict the “ability of social-media platforms to control whether and how third-party posts are presented to other users.” *Moody*, 603 U.S. at 717. And it conflicts with this Court’s reaffirmation that, when the government cannot censor protected speech “directly,” it cannot “coerce” private actors to suppress “speech on [government’s] behalf.” *Nat’l Rifle Ass’n of Am. v. Vullo*, 602 U.S. 175, 190 (2024) (citation omitted).

Finally, the Fifth Circuit’s decision “[c]onflict[s] with the decision[s] of [other] United States court of appeals on the same important matter[s].” Sup. Ct. R. 10(a). For example, long after this Court conclusively settled minors’ “right to speak or be spoken to without their parents’ consent,” *Brown*, 564 U.S. at 795 n.3, the Fifth Circuit has belatedly created a new circuit split about parental-consent requirements for minors to access protected speech. *See Ent. Software Ass’n v. Swanson*, 519 F.3d 768 (8th Cir. 2008); *Interactive Digit. Software Ass’n v. St. Louis*, 329 F.3d 954 (8th Cir. 2003); *Am. Amusement Mach. Ass’n v. Kendrick*, 244 F.3d 572 (7th Cir. 2001). To the extent there are no square circuit splits about *social media* laws, that is because the Fifth Circuit panel here diverged from the lower court consensus and leapfrogged ahead of other courts engaged in merits considerations of other state laws.

III. The Fifth Circuit’s stay order is demonstrably wrong, and NetChoice is likely to succeed on the merits of its claims.

The Fifth Circuit’s unreasoned stay order permits enforcement of a law violating

the First Amendment many times over. The Act unconstitutionally imposes content-based parental-consent, age-verification, and monitoring-and-censorship requirements for vague categories of speech on social media websites.

Given the glaring constitutional deficiencies, the district court’s preliminary-injunction ruling thus correctly held the Act unconstitutional as applied to the nine NetChoice-member covered websites. To satisfy the strict scrutiny that applies to content-based restrictions on protected speech, Respondent must show that the State has “[1] adopt[ed] the least restrictive means of [2] achieving a compelling state interest.” *Ams. for Prosperity Found. v. Bonta*, 594 U.S. 595, 607 (2021) (cleaned up) (“*AFP*”). Respondent cannot carry her burden, as the Act is both overbroad and underinclusive to serve any legitimate governmental interest. Even if strict scrutiny did not apply, governmental restrictions on “access to” social media websites are “enough” to raise—at minimum—intermediate First Amendment scrutiny. *Packingham*, 582 U.S. at 105-06; *see FSC*, 2025 WL 1773625, at *11. The Act cannot satisfy intermediate scrutiny, because it is not “narrowly tailored to serve a significant governmental interest.” *Packingham*, 582 U.S. at 105-06 (citation omitted). Under either form of scrutiny, “[w]hen[ever] the Government restricts speech, the Government bears the burden of proving the constitutionality of its actions.” *FEC v. Cruz*, 596 U.S. 289, 305 (2022) (citation omitted).

A. The Act’s parental-consent requirement for minors to access fully protected speech violates the First Amendment.

1. The Act violates the First Amendment by requiring minors to secure parental consent before becoming “an account holder”—before accessing the enormous amount

of protected speech on covered websites. § 4(2). This is akin to the government requiring bookstores, theaters, and video game arcades—and *only* such similar companies dedicated to disseminating fully protected speech—to verify parental consent before allowing minors to engage in protected speech activities.

This Court has held that minors have the “right to speak or be spoken to,” and governments lack the “power to prevent children from hearing or saying anything *without their parents’ prior consent.*” *Brown*, 564 U.S. at 795 n.3. *Brown* invalidated a law prohibiting the sale or rental of “violent video games” to minors, while permitting minors to play such games with parental consent. *See id.* at 802. After all, “minors are entitled to a significant measure of First Amendment protection.” *Id.* at 794 (cleaned up). Conditioning minors’ access to protected speech on parental consent is impermissible, whether that speech is “political rall[ies],” “religious” services, or content the State disfavors. *Id.* at 795 n.3. As this Court explained, there is no “precedent for state control, uninvited by parents, over a child’s speech.” *Id.*

Since *Brown*, the lower courts have consistently enjoined parental-consent requirements for minors to access social media. In doing so, courts have recognized the reality that social media is a prime outlet for minors’ political speech: “Minors, who cannot vote for the lawmakers that represent them, can use social media to make their voices heard on issues that affect them, like school shootings and school choice.” *Griffin*, 2025 WL 978607, *13. Parental-consent laws in both Arkansas and Ohio have been permanently enjoined. *Id.* at *8; *Yost*, 2025 WL 1137485, at *24. Similar requirements are preliminarily enjoined in Georgia, *Carr*, 2025 WL 1768621, at *13; Florida, *Uthmeier*, 2025 WL 1570007, *15; and Utah, *Reyes*, 748 F. Supp. 3d at 1126 & n.135.

This Act’s materially identical parental-consent requirement violates the First Amendment for the same reasons. It would impose an unconstitutional hurdle for minors to access protected speech, outright prohibiting access for some minors. Under the Act, minors would need to secure parental consent before, *e.g.*, discussing their faith in religious forums, “petition[ing] their elected representatives” on X, “shar[ing] vacation photos” on Facebook, looking for work around the neighborhood on Nextdoor, or learning how to solve math problems on YouTube. *Packingham*, 582 U.S. at 104.

Respondent cannot hide behind the Act’s provision requiring just “commercially reasonable” parental-consent mechanisms. § 4(2)(f); *see* App.276a-77a. Any form of state-mandated parental-consent (*i.e.*, “governmental authority, subject only to a parental veto”) would unconstitutionally restrict *users’* access to speech under *Brown*, which alone sustains this challenge. 564 U.S. at 795 n.3. So even if *websites* could provide parental consent in some “commercially reasonable” fashion (an undefined term), this still unconstitutionally burdens *minor users’* First Amendment rights. *Brown* would not have come out differently had California asked for “commercially reasonable” parental consent. *Id.* at 795 n.3, 802.

Similarly, any parental-consent requirement to access social media burdens websites’ right to disseminate fully protected speech. Censorship requirements do not comply with the First Amendment even if certain companies can afford the government’s mandates. The law is clear that governments cannot restrict speech simply because a publisher can afford it. *E.g.*, *Minneapolis Star & Trib. Co. v. Minn. Comm’n’r of Revenue*, 460 U.S. 575, 592 (1983).

Contrary to Respondent’s argument below, *FSC* did not hold that States’ “powers

to protect minors necessarily include” *all* “the power to employ the ordinary and appropriate means of achieving these ends,” including restrictions on fully protected speech like parental-consent requirements. App.278a (cleaned up). This Court in *FSC* did not overrule *Brown*—it cited *Brown* approvingly. 2025 WL 1773625, at *12. In *Brown*, California restricted access to “violent video games” to prevent “harm to minors.” 564 U.S. at 799. The Court rejected California’s parental-consent requirements, in part because “speech about violence *is not obscene*.” *Id.* at 793 (emphasis added). *FSC*, by contrast, was expressly premised on the fact that the speech being regulated was “*obscene to minors*”—a point this Court emphasized repeatedly. 2025 WL 1773625, at *8-9 (emphasis added). So although “a State possesses legitimate power to protect children from harm, [] that does not include a free-floating power to restrict the ideas to which children may be exposed. Speech that is n[ot] obscene as to youths . . . cannot be suppressed solely to protect the young from ideas or images that a legislative body thinks unsuitable.” *Brown*, 564 U.S. at 794-95 (cleaned up).

2. Because the Act’s parental-consent requirement “target[s] . . . fully protected speech,” it triggers and fails “[s]trict scrutiny,” which, “as a practical matter, [] is fatal in fact absent truly extraordinary circumstances.” *FSC*, 2025 WL 1773625, at *12. The Act’s parental-consent requirement cannot satisfy such scrutiny—or indeed any form of heightened scrutiny.

To start, the State lacks a sufficient governmental interest. This Court has rejected a governmental interest “in aid of parental authority” to restrict minors’ access to protected speech unless parents first consent. *Brown*, 564 U.S. at 802. *Brown* “note[d]” its “doubts that punishing third parties for conveying protected speech to

children *just in case* their parents disapprove of that speech is a proper governmental means of aiding parental authority.” *Id.* As the Court explained, accepting that argument “would largely vitiate the rule that ‘only in relatively narrow and well-defined circumstances may government bar public dissemination of protected materials to [minors].’” *Id.* (quoting *Erznoznik*, 422 U.S. at 212-13). And not all minors “have parents who *care* whether” they access covered websites. *Id.* at 804.

Even if that were a permissible governmental interest, however, the Act does not further it. The Act does not account for the difficulty of verifying a parent-child relationship to process parental consent. And “[d]isputes about the identity of an account holder, their age, or the legal relationship between them and the person claiming to be their parent are complex, time-consuming, costly . . . , and unfortunately common.” App.227a. These difficulties are compounded when, *e.g.*, families are nontraditional (such as foster families), families have different last names, parents disagree about consent, minors are unsafe at home, or parental rights are terminated. *See* App.254a. Respondent rejoined that “[t]here is no need to verify the parental relationship.” App.281a. But if services need not verify that a minor’s actual parent has consented, the Act cannot “promot[e] parental oversight.” *Contra* App.281a.

In all events, the Act’s parental-consent requirement is not the “least restrictive” way to accomplish any legitimate governmental ends. *AFP*, 594 U.S. at 607 (citation omitted). As the district court found, parents already have many options to oversee their children online. *See supra* pp.6-7; App.27a. That finding tracks the findings of other lower courts. *See NetChoice, LLC v. Bonta*, 113 F.4th 1101, 1121 (9th Cir. 2024); *Carr*, 2025 WL 1768621, at *18; *Uthmeier*, 2025 WL 1570007, at *18; *Yost*, 2025 WL

1137485, at *22; *Griffin*, 2025 WL 978607, at *14. Mississippi could give “parents the information needed to engage in active supervision” over internet access. *United States v. Playboy Ent. Grp., Inc.*, 529 U.S. 803, 826 (2000). And these tools are better suited to provide parents with meaningful, ongoing oversight over the minor children’s online activities, relative to the Act’s requirement for one-time parental consent. And “[i]t is no response that [these tools] require[] a consumer to take action, or may be inconvenient, or may not go perfectly every time.” *Id.* at 824. What is more, members’ self-regulation is extensive, as covered websites already engage in content moderation and provide parental controls and other tools. *See supra* p.7. This Court has recognized that “voluntary” self-regulatory efforts are preferable to government intervention. *Brown*, 564 U.S. at 803 (video game industry’s self-regulation).

The Act’s parental-consent requirements have yet more tailoring flaws. They are not “narrowly tailored” for purposes of intermediate scrutiny—let alone the least restrictive means for strict scrutiny. *Packingham*, 582 U.S. at 105-06 (citation omitted). Respondent has not proffered *any* evidence justifying impeding minors’ access to billions of pieces of fully protected speech across the nine member websites here—to say nothing of the many more websites the Act regulates. At bottom, the Act would require minors to secure parental consent to watch documentaries on YouTube, post their artwork on Instagram, submit their fan fiction to Dreamwidth, or debate politics on Facebook—in addition to myriad other fully protected speech activities. And the burden on protected speech here is not “incidental”; the restriction on minors’ access to speech is the entire point of the law. *FSC*, 2025 WL 1773625, at *11. Accordingly, the Act “burden[s] substantially more speech than is necessary to further” any

governmental interest. *Packingham*, 582 U.S. at 106 (citation omitted).

The State certainly has not provided “a direct causal link between” access to all of the regulated websites and harms to minors. *Brown*, 564 U.S. at 799. The Act’s blunderbuss approach to regulating online speech is an insurmountable tailoring flaw. Even if covered websites were genuinely “dangerous,” it is unclear why the State would allow minors to access them “so long as one parent . . . says it’s OK.” *Id.* at 802.

In addition, the Act fails to “take into account juveniles’ differing ages and levels of maturity.” *Virginia v. Am. Booksellers Ass’n, Inc.*, 484 U.S. 383, 396 (1988). The Act unlawfully requires parental consent for all minors at every developmental stage—from websites’ youngest users to 17-year-olds. *Id.*

B. The Act’s age-verification requirement for adults and minors to access fully protected speech violates the First Amendment.

1. The Act also violates the First Amendment by requiring all users—adults and minors—to “verify” their “age[s]” to “creat[e] an account” on covered websites. § 4(1). In other words, the Act burdens threshold access to “what for many are the principal sources for knowing current events, . . . and otherwise exploring the vast realms of human thought and knowledge.” *Packingham*, 582 U.S. at 107. This is akin to stationing government-mandated clerks at every bookstore and theater to check identification before citizens can access books, movies, or even join conversations.

FSC squarely held that “submitting to age verification is a burden on the exercise of” the “right to access speech” protected by the First Amendment. 2025 WL 1773625, at *11. Government-mandated “age verification necessarily” “burden[s]” that right. *Id.* at *16. This Court has held that the government requiring an “affirmative

obligation . . . as a limitation on the unfettered exercise of . . . First Amendment rights” is unconstitutional. *Lamont v. Postmaster Gen. of U.S.*, 381 U.S. 301, 305, 307 (1965). Nowhere can that be more true than in the context of the Act here, which requires age verification to access “the most powerful mechanisms available to a private citizen to make his or her voice heard.” *Packingham*, 582 U.S. at 107. Indeed, the undisputed record evidence demonstrates that just requiring users to self-report their birthdates deters users from accessing the websites. *E.g.*, App.198a-200a. That is why multiple courts have enjoined enforcement of age-verification requirements to access social media. *E.g.*, *Carr*, 2025 WL 1768621, at *13-14; *Griffin*, 2025 WL 978607, at *8-10; *Reyes*, 748 F. Supp. 3d at 1129 & n.169.

Contrary to Respondent’s arguments below, the Act’s requirement for “commercially reasonable” age verification, § 4(1), does not alter the constitutional analysis. App.276a-77a. As an initial matter, commercially reasonable age “verification” will require something more than simply asking for self-declared age—because the Act separately requires “register[ing]” users’ ages. *See supra* p.9.

Whatever form verification takes, a state law burdening users’ access to protected speech does not become constitutional just because it might be “commercially reasonable” for the publisher to comply with the government’s speech restrictions. *Supra* p.20. *FSC* confirms that courts can rule on the constitutionality of state laws requiring “commercially reasonable method[s]” without an exhaustive inventory of what is “commercially reasonable” for every website. 2025 WL 1773625, at *3 (quoting Tex. Civ. Prac. & Rem. Code § 129B.003(b)). *FSC* considered the merits of the First Amendment facial challenge there, even though there was a similar

“commercially reasonable” qualifier for age verification. *Id.* Just as with the parental-consent requirement, *any* age-verification requirement would unconstitutionally restrict users’ access to—and websites’ right to disseminate—fully protected speech.

Nor does *FSC* permit Mississippi to require age-verification to access fully protected speech for adults and minors. *FSC* involved “pornography,” a unique category of speech that is simultaneously protected for adults but unprotected for minors. *Id.* at *11. So age verification to access websites that disseminate large amounts of pornography would be consistent with age verification at physical bookstores to access such content, if made available. *Id.* In contrast, the Act here “direct[ly] target[s]” a staggering amount of “*fully protected speech*”—for minors and adults alike. *Id.* at *12 (emphasis added). And it lacks a “brick-and mortar” analogue, as government-imposed age verification is not necessary (or permissible) to enter bookstores, theaters, or arcades. *See supra* p.17. This Act thus presents far different issues from pornography laws, as *FSC* recognized would be the case. 2025 WL 1773625, at *10.

Contrary to Respondent’s claims below (App.279a), *FSC* did not hold that “there is ‘no First Amendment right to avoid’ age verification or parental consent” for fully protected speech. Again, *FSC*’s holding was cabined: It held that adults could lack the First Amendment right to avoid age verification to access speech “obscene to minors” (in contrast to fully protected speech for adults *and* minors), because this unique speech category “is unprotected to the extent the State seeks only to verify age.” 2025 WL 1773625, at *11. And even then, age-verification laws in that unique context still triggered intermediate scrutiny because they “burden” adults’ rights. *Id.*

2. Because the Act’s age-verification requirement “target[s] . . . fully protected

speech,” it triggers “[s]trict scrutiny.” *Id.* at *12. But the age-verification requirement would fail any form of heightened First Amendment scrutiny. Like the parental-consent requirements, the age-verification requirements are not the least restrictive means of achieving the State’s purported interest, or even a narrowly tailored means of doing so. *See supra* pp.21-24.

Age verification is only a means to effectuate the Act’s other unlawful age-based restrictions, like the parental-consent requirements and the monitoring-and-censorship requirements. Because those other provisions are unlawful, age-verification serves no valid governmental interest.

Regardless, the Act is overbroad because it would require adults and minors to provide personally identifying information to access all manner of fully protected speech. As a result, it “burden[s] substantially more speech than is necessary to further” any governmental interest. *Packingham*, 582 U.S. at 106 (citation omitted). As discussed above at p.23, nothing in the record justifies impeding threshold access to countless pieces of fully protected speech on the nine member websites at issue.

The Act also would “all but kill anonymous speech online,” by “requir[ing] . . . website visitors [to] forgo the anonymity otherwise available on the internet” which “would undoubtedly chill speech—and, likely, would disproportionately chill speech on the most controversial issues.” *Carr*, 2025 WL 1768621, at *15 (citation omitted). That burdens the First Amendment right of speakers to “remain anonymous.” *McIntyre v. Ohio Elections Comm’n*, 514 U.S. 334, 342 (1995). And it would deter adults from accessing the websites, as undisputed record evidence shows. App.198a-200a.

C. The Act’s monitoring-and-censorship requirements are unconstitutional.

The Act’s requirement that websites “implement a strategy to prevent or mitigate . . . exposure to” vaguely defined categories of protected speech violates the First Amendment and the Due Process Clause. § 6(1). It imposes a prior restraint on disseminating protected speech. It further violates websites’ right to “control the content that will appear to users.” *Moody*, 603 U.S. at 736. And it unconstitutionally “deputizes private actors into censoring speech.” *Bonta*, 113 F.4th at 1121.

1. The Act’s § 6 imposes a prior restraint: It prohibits websites from publishing speech “in the future” unless they meet state-imposed requirements. *Alexander v. United States*, 509 U.S. 544, 553 (1993). Prior restraints are the “least tolerable infringement on First Amendment rights.” *Neb. Press Ass’n v. Stuart*, 427 U.S. 539, 558-59 (1976). And requiring websites to monitor all content they disseminate to satisfy the State’s standards will unconstitutionally chill speech. *Smith v. California*, 361 U.S. 147, 152-54 (1959).

Here, § 6 requires covered websites to “prevent . . . minor[s]’ exposure” to protected speech before any judicial determination that the speech may lawfully be suppressed. *See Alexander*, 509 U.S. at 551. Even prior restraints of *unprotected* speech must meet “the most exacting scrutiny.” *Smith v. Daily Mail Pub. Co.*, 443 U.S. 97, 101-02 (1979) (collecting cases).

Below, Respondent insisted that § 6 does not “require[] platforms to block or alter content,” requiring that they only “adopt” a “strategy.” App.280a. Yet the Act’s express language requires websites to “implement” that strategy, forcing websites to

censor (“prevent . . . exposure to”) protected speech accessible to minors. § 6(1). The Western District of Texas preliminarily enjoined enforcement of a nearly identical requirement. *CCIA v. Paxton*, 747 F. Supp. 3d at 1036-38, 1040-42. And the Texas Attorney General acknowledged that Texas’s substantially similar law requires “filtering” content. See Appellant Br. 2, 5-6, 10, 36, 48, *Comput. & Commc’ns Indus. Ass’n v. Paxton*, 5th Cir. Case Nos. 24-50721, 25-50096 (Apr. 28, 2025). If websites need only “adopt” (but not “implement”) a strategy, this provision cannot possibly advance any governmental interest. In any event, while Respondent admits that NetChoice members have voluntarily implemented “strateg[ies]” to protect minors online, App.281a-82a, Respondent has never said *any* existing strategies comply with the Act.

Respondent also argued below that websites can comply with this provision by simply posting resources for minor users, addressing § 6’s content categories. App.280a. It is unclear why the Act would seemingly permit the purported harms to happen and then require only mitigation through the form of government-compelled speech. Nor is it clear how § 6(1) could *require* websites to provide mitigation resources when the Act expressly explains in § 6(2) that the Act should not be “construed” to “prevent or preclude” the websites “from providing resources for the prevention or mitigation of” harms. Regardless, if the Act compels speech about content-based categories, that imposes a First Amendment problem too. See *Nat’l Inst. of Fam. & Life Advocates v. Becerra*, 585 U.S. 755, 766 (2018). The First Amendment prohibits the government from compelling private actors to serve as a mouthpiece for the State. This Court has called this principle the one “fixed star in our constitutional

constellation.” *W. Va. State Bd. of Educ. v. Barnette*, 319 U.S. 624, 642 (1943).

Assuming the Act did not demand monitoring and filtering, it imposes the kind of “informal” governmental “coercion” that this Court has rejected. *Bantam Books, Inc. v. Sullivan*, 372 U.S. 58, 67 (1963). A “government official cannot do indirectly what she is barred from doing directly.” *Vullo*, 602 U.S. at 190. Delegating censorship authority to private parties exacerbates the constitutional harm. Private entities lack the constitutional constraints that bind government actors, creating an “unacceptable risk of the suppression of ideas.” *City of Lakewood v. Plain Dealer Publ’g Co.*, 486 U.S. 750, 764 n.9 (1988) (citation omitted).

2. Even if § 6 were not a prior restraint, it still violates the First Amendment by restricting “a substantial amount of constitutionally protected speech,” rendering it “facially invalid.” *City of Houston v. Hill*, 482 U.S. 451, 466-67 (1987). Statutory “[t]erms like ‘promoting,’ . . . ‘substance abuse,’ ‘harassment,’ and ‘grooming’ are undefined, despite their potential wide breadth and politically charged nature.” *CCIA v. Paxton*, 747 F. Supp. 3d at 1036. The State may not enact “statute[s] patently capable of many unconstitutional applications, threatening those who validly exercise their rights of free expression.” *Smith*, 361 U.S. at 151. Nor may it “create a wholly new category of content-based regulation that is permissible only for speech directed at children.” *Brown*, 564 U.S. at 794.

Explained below and collected in Plaintiff’s Amended Complaint (App.135a-36a) are examples of protected speech that the Act could reach.

A host of works of literature and philosophy could “promote[] or facilitate[] . . . [s]elf-harm, eating disorders, substance use disorders, and suicidal behaviors.”

§ 6(1)(a). Examples include Sylvia Plath’s *The Bell Jar* (1963), the biblical story of Samson (*Judges* 16), and the television series *13 Reasons Why* (2017-2020). The Act also captures discussions about assisted suicide for those with terminal illnesses in online support groups. *Cf.* Peter Singer, *Practical Ethics* (3d ed. 2011).

Popular culture is replete with protected speech that could “promote[] or facilitate[] . . . substance abuse or use of illegal drugs.” § 6(1)(b). Examples include The Weeknd’s Kids’-Choice-Award-nominated *Can’t Feel My Face* (2015) and The Beatles’ *Lucy in the Sky with Diamonds* (1967). The Act also reaches support-group discussions about using drugs to address illnesses.

Similarly, many protected works of art could “promote[] or facilitate[] . . . [s]talking, physical violence, online bullying, or harassment.” § 6(1)(c). Examples include The Police’s *Every Breath You Take* (1983) and entire categories at large bookstores (*e.g.*, Stalking – Fiction, Barnes & Noble, <https://perma.cc/VX92-257V>).

NetChoice members work tirelessly to detect and block content that could “promote[] or facilitate[] . . . [g]rooming, trafficking, child pornography, or other sexual exploitation or abuse.” § 6(1)(d); *see* App.177a; App.242a-43a. Yet even “teenage sexual activity and the sexual abuse of children” has “inspired countless literary works” such as “Romeo and Juliet” and the movie “American Beauty.” *Ashcroft v. Free Speech Coal.*, 535 U.S. 234, 247-48 (2002).

Many works of art, literature, political expression, and pop culture could “promote[] or facilitate[] . . . [i]ncitement of violence.” § 6(1)(e). Concerns about minors’ exposure to violent video games led to this Court’s decision in *Brown*. 564 U.S. at 794. Short of actual incitement to “imminent lawless action [that] is likely to incite or

produce such action,” such speech is fully protected by the First Amendment. *Brandenburg v. Ohio*, 395 U.S. 444, 447 (1969); see *Nwanguma v. Trump*, 903 F.3d 604, 610 (6th Cir. 2018) (“[m]ere tendency of speech to encourage” or promote “unlawful acts” isn’t “sufficient reason for banning it” (cleaned up)).

Countless forms of protected speech could “promote[] or facilitate[] . . . [a]ny other illegal activity.” § 6(1)(f); see App.135a-36a. For instance literature discussing civil disobedience as a form of democratic protest could promote illegal activity. And what is “illegal” can vary town to town, state to state, and country to country.

The “harmful material” (§ 2(c)) category does not distinguish speech that is obscene to children versus teenagers. *Am. Booksellers*, 484 U.S. at 389. Furthermore, because the Act requires websites to continually monitor for individual pieces of such content, private entities “will tend to restrict the” content they disseminate “to those [they have] inspected; and thus the State will have imposed a restriction upon the distribution of constitutionally protected as well as obscene literature.” *Smith*, 361 U.S. at 153.

The Act’s *exceptions* to § 6’s requirements do not cure the Act’s deficiencies, and they only raise more questions. They permit: (1) minors to “deliberately and independently search[] for, or specifically request[]” speech; and (2) websites to “provid[e] resources for the prevention or mitigation of the harms” described above. § 6(2). It is unclear how websites must verify and prove that a minor deliberately sought out such content, or whether content qualifies for these exceptions.

Consequently, covered websites will need to align their content moderation with the State’s requirements—what this Court made clear the First Amendment does not

allow. *Moody*, 603 U.S. at 732-33. Even given their extensive content moderation, members cannot be sure that any of their current policies will satisfy how Respondent interprets the Act. App.187a-88a; App.216a-21a. So Respondent can second-guess any content-moderation decision. But content moderation is often nuanced and context-dependent. App.178a-79a; App.220a. Given the sheer volume of speech on these services, covered websites will be required to guess at Respondent’s subjective determinations for potentially *billions* of individual pieces of speech. *E.g.*, App.179a.

3. Section 6 triggers and fails strict scrutiny. It directs websites to block content-based categories of speech “based on its communicative content.” *Reed*, 576 U.S. at 163-64. These categories are content-based even if the State purports to regulate only the *effects* of speech. *Boos v. Barry*, 485 U.S. 312, 321 (1988). These categories are also viewpoint-based, regulating speech that “promotes” social ills. § 6(1).⁶ A law is directly “aimed at a particular viewpoint” if it forbids “promot[ing]” that viewpoint. *Sorrell v. IMS Health Inc.*, 564 U.S. 552, 565 (2011). For example, the Act’s restriction on content that “promotes . . . illegal drugs” targets the (highly objectionable but protected) viewpoint that illegal drugs are good.

Section 6 fails strict scrutiny. Its requirements are overinclusive and not the least restrictive means of regulating speech, as they are “superimposed upon the State’s

⁶ Several Circuits have held that statutes using similar language, including “promote,” violate the First Amendment by restricting protected speech. *E.g.*, *United States v. Miselis*, 972 F.3d 518, 536 (4th Cir. 2020) (“promote” is “overinclusive” as “between advocacy and action”); *Gay Lesbian Bisexual All. v. Pryor*, 110 F.3d 1543, 1550 (11th Cir. 1997) (law prohibiting “foster[ing],” “promot[ing],” and “encourag[ing]” “was overbroad”); *Nat’l Gay Task Force v. Bd. of Educ. of City of Okla. City*, 729 F.2d 1270, 1274 (10th Cir. 1984) (similar).

criminal regulation[s].” *Bantam Books*, 372 U.S. at 69. Those existing criminal laws make the Act “largely unnecessary,” *id.*, and an improper “prophylaxis-upon-prophylaxis,” *Cruz*, 596 U.S. at 306 (citation omitted). Mississippi law already addresses the unlawful conduct appearing in the prohibited categories. App.155a-56a. Governments cannot “suppress[]” the speech of a “law-abiding” person or website “to deter conduct by a non-law-abiding third party.” *Bartnicki v. Vopper*, 532 U.S. 514, 529-30 (2001).

In addition, NetChoice members’ nine covered websites already engage in their own “voluntary” content moderation to address the content that concerns the State—which is a less-restrictive alternative. *Brown*, 564 U.S. at 803; *see supra* p.7.

Furthermore, because many covered websites may not be able to “age-gate” content such that minors and adults are presented with different content, *see* App.255a, the law’s effects cannot be limited to minors. Such websites can comply only by preventing prohibited content from reaching *anyone*. App.255a. So the Act could unconstitutionally “reduce the adult population . . . to reading only what is fit for children.” *Butler v. Michigan*, 352 U.S. 380, 383 (1957).

These requirements are also underinclusive. There are myriad unregulated websites on the internet—let alone television, books, and other media—where minors can encounter content prohibited by the Act. And the exception allowing a minor to “deliberately and independently” seek out the otherwise regulated speech on covered websites undermines the Act entirely. § 6(2)(a). If this speech is dangerous, the Act’s allowance for minors to expressly request such speech means this law plainly does not further the State’s goals. *Brown*, 564 U.S. at 802. A “law cannot be regarded as

protecting an interest of the highest order . . . when it leaves appreciable damage to that supposedly vital interest unprohibited.” *Reed*, 576 U.S. at 172 (citation omitted).

4. Section 6 is also unconstitutional because its requirements are too vague to provide covered websites “sufficient definiteness” to ensure “that ordinary people can understand” what will give rise to liability. *Kolender v. Lawson*, 461 U.S. 352, 357 (1983). Rather, they risk “arbitrary or discriminatory” enforcement. *FCC v. Fox Television Stations, Inc.*, 567 U.S. 239, 253 (2012). For example, a key consideration under the Act is whether content “promotes” certain social ills. § 6(1). This Court invalidated, “because of vagueness,” a law hinging on the word “promote.” *Baggett v. Bullitt*, 377 U.S. 360, 371 (1964). As the Court explained, the “range of activities which are or might be deemed” to “promote” an idea “is very wide indeed” and provides no “ascertainable standard of conduct.” *Id.* at 371-72; see *CCIA v. Paxton*, 747 F. Supp. 3d at 1040. The Act’s parallel usage of “facilitates” is no better. § 6(1).

These problems are exacerbated by the nature of websites’ content-moderation policies and decisions, where context, and other factors are relevant to whether content “promotes or facilitates” something. App.248a-50a; App.178a-79a. And these websites publish various forms of media in many languages and reflecting cultures worldwide. So all too often, whether content falls into one of the Act’s prohibited categories will be a matter of perception—and “completely subjective.” *Grayned v. City of Rockford*, 408 U.S. 104, 113 (1972). These vague prohibitions “effectively grant[] [the State] the discretion to [assign liability] selectively on the basis of the content of the speech.” *Hill*, 482 U.S. at 465 n.15.

D. The Act’s content-based coverage definition renders all of the Act’s speech restrictions unconstitutional.

1. The Act’s challenged speech restrictions also trigger strict scrutiny because the Act’s central coverage provisions (§ 2(a)-(b)) are content-based. This content-based “digital service” definition subjects all of the Act’s speech regulations to strict scrutiny because “content-based burdens must satisfy the same rigorous scrutiny as its content-based bans.” *Sorrell*, 564 U.S. at 566 (citing *Playboy*, 529 U.S. at 812).

The Act’s coverage provisions are content-based, rendering all of the Act’s operative provisions content-based. The Act covers “digital service[s]” that “allow[] users to socially interact with other users.” § 3(1). It thus excludes websites that allow users to interact “professionally” or those that do not allow interaction. The Act also expressly excludes websites that “[p]rimarily function[] to provide a user with access to [1] news, [2] sports, [3] commerce, [4] online video games,” and “[5] career development opportunities.” § 3(2)(c)-(d). These distinctions are based on “subject matter”—and thus “content.” *Reed*, 576 U.S. at 163; see *Barr v. Am. Ass’n of Pol. Consultants*, 591 U.S. 610, 621 (2020) (controlling plurality op.) (exceptions to law can render law content-based). Multiple lower courts have concluded that similar exceptions render similar laws content based. *Carr*, 2025 WL 1768621, at *11-12; *Yost*, 2025 WL 1137485, at *18; *Griffin*, 2025 WL 978607, at *9; *Paxton*, 747 F. Supp. 3d at 1032.⁷

2. Even assuming for the sake of argument that Mississippi could establish a sufficient governmental interest, several tailoring flaws pervade the Act’s coverage.

⁷ Because the Act’s coverage definition is content-based, so too is each provision regulating speech depending on this definition: age verification, § 4(1); parental consent, § 4(2); information use and collection, § 5; and monitoring and censorship, § 6.

The Act is vastly overinclusive. It does not purport to identify particular websites that are harmful to minors or even particularly likely to be accessed by minors. *See* App.197a-98a; App.210a. And for the websites it regulates, the Act restricts users’ access to *all* speech on those websites, including core protected speech.

Even under intermediate scrutiny, the Act “burden[s] substantially more speech than is necessary to further” any governmental interest. *Packingham*, 582 U.S. at 106 (citation omitted); *see FSC*, 2025 WL 1773625, at *5. It indiscriminately regulates all social media websites, without proof that *any* of them are harmful—let alone *all* of them. And it restricts access to *all* of the protected expression on those websites. *See supra* p.23. That makes this case unlike *FSC*, where the Texas law singled out “pornography” websites for age-verification. 2025 WL 1773625, at *7. Whatever kinds of “valid regulation[s]” the State can impose on “the pornography industry,” *id.* at *18, it cannot impose like restrictions on peoples’ access to fully protected speech.

The Act is also “seriously underinclusive.” *Brown*, 564 U.S. at 805. The Act’s coverage definition and its exclusions create gaps that undermine the necessary “coherent policy.” *Sorrell*, 564 U.S. at 573 (citation omitted). If the State is attempting to regulate particular online interactions, that will be ineffective. For example, the Act restricts minor users from using covered websites to engage in conversations about sports but does not do so for *the same conversation* that takes place on websites “primarily” dedicated to “[1] news, [2] sports, [3] commerce, [4] online video games,” and “[5] career development opportunities.” § 3(2)(c)-(d). If anything, the nine websites at issue here are among the websites most likely to engage in content moderation and provide parents tools to oversee their minor children online.

IV. NetChoice’s covered members’ websites and their users will suffer substantial irreparable harms absent a vacatur.

The Act will cause NetChoice, its members, and internet users irreparable harm.

“The loss of First Amendment freedoms, for even minimal periods of time, unquestionably constitutes irreparable injury.” *Roman Cath. Diocese of Brooklyn v. Cuomo*, 592 U.S. 14, 19 (2020) (citation omitted). NetChoice’s covered members suffer irreparable harm when they are forced to comply with the Act, imposing burdens on their ability to disseminate and facilitate users’ speech. App.211a-13a, 224a-25a, 227a. Members’ burdens are matched by the harms their users face. Minors suffer harm when the Act prevents them from accessing fully protected speech through both age verification and parental consent. App.188a. And all users suffer harm when they must comply with age verification to access fully protected speech. App.199a-200a. When users can access those services, their ability to view and engage in certain speech will be limited. The Act’s large penalties for noncompliance magnify these harms: \$10,000 per violation and the specter of criminal liability. *See supra* p.11.

The Act also requires covered websites to shoulder steep and “nonrecoverable” compliance costs. *Ohio*, 603 U.S. at 292 (citation omitted). Compliance with the Act would require large-scale changes to some of the internet’s biggest websites—not to mention many more similar, but smaller, communities. Each covered website will need to adopt age-verification, parental-consent, and monitoring systems to comply with the Act—at great expense. App.184a; App.202a.

For some websites, these compliance costs are “far in excess of [the] available budget” and “threaten[] [their] ability to continue operating.” App.226a-27a. In addition to the large upfront costs of developing these new systems, covered websites must

maintain those systems. That will be onerous as well. For example, “[d]isputes about the identity of an account holder, their age, or the legal relationship between them and the person claiming to be their parent are complex, time-consuming, costly . . . , and unfortunately common.” App.226a-27a.

V. The equities favor vacatur.

Whenever litigants seek injunctive relief, “often the harms and equities [will be] very weighty on both sides.” *Ohio*, 603 U.S. at 291 (citation omitted). Accordingly, resolving NetChoice’s request “ultimately turns on the merits.” *Id.* at 292. But here, the remaining equitable factors substantially weigh in NetChoice’s favor.

Unless this Court vacates the Fifth Circuit’s stay, NetChoice members and their users will suffer immediate First Amendment harms. Users of NetChoice members will need to jump over the state-mandated hurdles to continue engaging in protected expression. What is more, members themselves will be compelled to adopt and implement the capabilities to enforce the State’s restrictions, as the undisputed record evidence shows. App.211a; *see* App.183a-84a. So vacating the Fifth Circuit’s stay would “preserv[e] the status quo” ante that persisted before Mississippi’s unconstitutional speech restrictions. *San Diegans for Mt. Soledad Nat’l War Mem’l v. Paulson*, 548 U.S. 1301, 1304 (2006) (Kennedy, J., in chambers).

On the other side of the ledger, Mississippi lacks an interest in enforcing an unconstitutional law. Although the State has an interest in protecting minors, the government cannot pursue even laudable ends by unlawful means. *NFIB v. OSHA*, 595 U.S. 109, 120 (2022) (per curiam).

Furthermore, the State’s interest is amply served by NetChoice members’

existing content moderation efforts and the availability of other means available to parents to oversee their children online—including those offered by NetChoice members. Accordingly, the district court’s injunction does not eliminate all “efforts to protect minors.” App.284a. NetChoice’s members will continue moderating content according to their existing policies. *See supra* p.7. Parents can use the tools available to them, which the State can promote. *Supra* pp.6-7 And law enforcement can continue investigating and enforcing existing criminal laws. *See supra* pp.33-34; *e.g.*, *Ashcroft v. ACLU*, 542 U.S. 656, 671 (2004) (“[I]f the injunction is upheld, the Government in the interim can enforce obscenity laws already on the books.”).

CONCLUSION

The Fifth Circuit’s stay order would transform how Mississippi residents access and experience fully protected online speech—and how social media websites curate, disseminate, and display this speech. This law would stifle the internet’s promise of “relatively unlimited, low-cost capacity for communication of all kinds,” by requiring users to jump through substantial barriers to accessing speech that this Court—not to mention numerous courts across the country—have held unconstitutional in a variety of contexts. *Packingham*, 582 U.S. at 104 (citation omitted). And this transformation would occur with no reasoned analysis, no consideration of this Court’s precedents, and no regard for the nationwide consensus rejecting similar laws. Litigation should proceed under the status quo ante, when Mississippi residents could access fully protected online speech freely.

For the foregoing reasons, NetChoice respectfully requests an immediate vacatur of the Fifth Circuit’s stay order.

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Respectfully submitted.

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